



File No.: EXP202404578

## RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on March 5, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access and Limitation against MARÍN CUENDA, C.B. (hereinafter, the respondent) without their request receiving the legally established response.

The complaint is based on the respondent's failure to address the request made by the complainant exercising the right of access to images from the video surveillance system of one of the respondent's establishments.

The complainant states that, following an incident at a pharmacy of the respondent, on July 9, 2023, they sent an email to [rgpd@farmaciastrebol.com](mailto:rgpd@farmaciastrebol.com), requesting access to recordings from the video surveillance system of that establishment, as well as the limitation of the processing of the same, or at least their preservation.

The complainant indicates that on July 10, 2023, they sent an email in the same terms to the email address included in the sign of the monitored area of the establishment, without having received a proper response.

The complainant notes that after leaving a negative review of the entity through GOOGLE, they were contacted by representatives of the respondent, although at no time were the requested images made available to the complainant.

SECOND: On July 3, 2024, this Agency resolves regarding the complaint filed by the complainant and their unattended access request and concludes by archiving the complaint as follows:

"In summary, the application of the principle of presumption of innocence prevents attributing an administrative infraction when no evidence or indications have been obtained that derive from the existence of an infraction.

In this case, from the actions taken and the documentation in the file, no infringing action by the respondent is inferred within the competence of the AEPD, therefore the archiving of the complaint is appropriate."

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THIRD: The complainant submits a motion for reconsideration which is resolved on October 25, 2024, in a favorable manner, leading to the current procedure with the following arguments:

"In this case, the appellant in their request dated July 10, 2023, did not clearly express their intention for the processing of the images recorded by the video surveillance cameras of the pharmacy office of the respondent to be limited, by requesting that "(...) they NOT be deleted and that all recordings from that date, July 9, 2023, in their establishment be preserved for the purpose of expert evidence," indicating in that request that they needed them as evidence to file a complaint, as provided in Article 18.1 of the GDPR.

The respondent has stated that they did not respond to the appellant's request because they considered it was not a request for the right of access or other rights recognized by data protection legislation. It was also informed that the retention period for the images they have set is one month, so, in compliance with that period, the images recorded on July 9, 2023, had been deleted.

Given the above, it is verified that the respondent did not properly address the request for the exercise of rights by the appellant, by not preserving the requested image recording and proceeding to its

deletion without having responded to the request made.

Therefore, there are indications that the respondent may have committed a violation of personal data protection regulations. Consequently, the appeal filed is upheld."

FOURTH: In light of the events, on October 28, 2024, the original complaint, the motion for reconsideration filed by the complainant, and the resolution of that motion are forwarded to the respondent, granting them a period of ten working days to present any allegations they deem appropriate. As of the resolution date of this procedure, the respondent has not submitted any allegations.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

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Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the case that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The

burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

#### IV

##### Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

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#### V

##### Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the erasure of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of legal claims;
- d) the data subject has objected to the processing pursuant to Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of legal claims, or for the protection of the rights of another natural or legal person, or for important public interest reasons of the Union or of a Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction."

It should be noted that the right to restrict processing enables the claimant to limit the processing of data when the accuracy of the personal data is contested, for a period allowing the controller to verify its accuracy; when the processing is unlawful and the data subject opposes the erasure of the personal data; when the controller no longer needs the personal data for the purposes of processing, but they are necessary for the formulation, exercise, or defense of legal claims; or when the data subject has objected to the processing while verifying whether the legitimate grounds of the controller prevail over those of the claimant.

VI

#### Conclusion

In the case analyzed here, the claimant exercised their right of Access and restriction of processing, and after the period established in the aforementioned regulations, their request received a response that this Agency deemed appropriate, and the complaint was filed.

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Later, the claimant submitted a request for reconsideration which, once analyzed, was upheld and led to the current complaint. Now, having reviewed all the documentation provided by both parties, we find that the reason for the discrepancy is that the respondent has always considered that it was not an exercise of the right of access or other rights recognized by data protection legislation.

It should be noted that the claimant sent an email to [sanfernando@farmaciastrebol.com](mailto:sanfernando@farmaciastrebol.com) on July 10, 2023, requesting the retention of the recordings made the day before, July 9, 2023, and explaining that the reason for this request was that:

"The reason for this request is that you store and do not destroy the recording concerning me, in which (...) B.B.B., (...) denies me the dispensing of private prescriptions with Barcode, literally stating 'that they seem false to him and that he surely wants to sell them'."

It should be noted that the respondent has no reason to consider that the email received on July 10, 2023, from the claimant was not a request for rights recognized in data protection legislation. The request to exercise rights was sent to the address appearing on the informational sign of the video surveillance area located in the pharmacy, which literally states:

"You can exercise your data protection rights before" [sanfernando@farmaciastrebol.com](mailto:sanfernando@farmaciastrebol.com).

It is verified that the respondent did not properly address the request for the exercise of rights from the claimant and did not retain the requested image recording, proceeding to its deletion without having responded to the request made just the day after the recording. Therefore, a violation of personal data protection regulations has occurred.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that controllers are obliged to issue, even in cases where there are no data in the files or even in those cases where the requirements are not met, in which case the recipient of such a request is also obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with reasons indicating the causes for which the right in question should not be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Since no copy of the necessary communication that should be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ESTIMATE the claim made by A.A.A. considering that the provisions of Articles 15 and 18 of the GDPR have been infringed and to urge MARÍN CUENDA, C.B. with NIF E87883237, to send to the claimant a certification within ten working days following the notification of this resolution, addressing the requested right or denying it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A. and to MARÍN CUENDA, C.B. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties. Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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